

The New Year Gold Finale

One customer wins 100 g of certified gold — announced LIVE on 31 December 2026

A compliance-engineered festive customer-acquisition engine for India's first 200-manufacturer, 400,000-design jewellery platform — with a **Rs 1.5 crore** investment proposal and a fully documented legal / CA / consumer-court playbook (Part II).

INVESTMENT ASK Rs 1.5 Cr Deployment & working capital	MARKETING BUDGET Rs 9,00,000 Fixed · phased to finale	GIVEAWAY PRIZE 100 g 24K gold ~Rs 15 lakh · certified · audited	BALANCE ~Rs 1.16 Cr Inventory & supply chain — asset
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September 2026 · Investor discussion · Part I: pitch · Part II: compliance, CA & consumer-court playbook. Not investment, legal or tax advice.

The opportunity window

Gold today (24K)

Rs 1.49–1.55 L

per 10 g, Sep 2026; festive upside historically +5–10% by December

Silver today

Rs 234–250 / g

volatile; anchors the qualifying festive basket

Peak demand

6–10 Nov

Dhanteras · Diwali · Bhai Dooj — then wedding & Christmas to New Year

Online jewellery

Trust gap

hallmark, purity & return anxiety — transparency wins

The structural gap we attack

India's festive gold market is a giant selling through fragmented local jewellers and generic marketplaces. Nobody has combined aggregated manufacturer designs (200+ makers, 400,000+ SKUs), an AI design concierge, verifiable BIS hallmarking / HUID — and a compliance-safe national dream-prize funnel — to break through at launch.

Why the prize is the point

A Rs 15 lakh headline on Instagram is media, not just a cost. At Rs 9L of paid spend the prize multiplies attention ~2–3×; every rupee doubles as brand PR, live content and a nationwide retargeting asset — legally structured (free entry + skill quiz + audited draw).

Shivaa.in — the machine behind the campaign

Live CMS & storefront

Built

PHP 8 SPA, catalogue & checkout; v37+ HUID workflow (F1);
Why-Trust-Shivaa (F2).

Registered entity

Pvt Ltd

Ernate Shine Jewellery Pvt. Ltd. · CIN U32111RJ2025PTC099173 ·
UDYAM · GSTIN live pre-sale.

Supply pipeline

200 makers

Mumbai network; templated hallmark / HUID warranty, IP indemnity,
dispatch SLAs.

Design catalogue

400,000+

bridal, daily-wear gold, festive silver — phased, fulfil-able at launch.

AI design concierge

Gemini bot

quiz + chat turns 400k designs into a shortlist — disclosed AI,
DPDP-ready.

Compliance kit

Ready

T&C;, free-entry route, grievance officer, audited-draw protocol,
CCPA / ASCI copy rules.

Why this matters to an investor: the prize only pays if traffic converts. Shivaa already has the catalogue, the chatbot, the trust assets and the compliance engineering — the campaign converts that into demand.

The campaign in one breath

- ◆ **12 Sep 2026** — compliant Instagram Live launch announcement + free pre-registration waitlist.
- ◆ **Qualifying order** — a single paid, non-cancelled order with ≥ 3 g gold and ≥ 100 g silver, verified by invoice weight at dispatch.
- ◆ **After purchase** — a short skill / preference quiz grants one entry into the prize selection.
- ◆ **Free route** — genuine no-purchase entry, same quiz, equal odds — a lawful contest, not a lottery.
- ◆ **The prize** — one customer receives 100 g of 24K certified gold (refiner certificate; ~Rs 15 lakh market value).
- ◆ **31 Dec 2026** — CA-witnessed, live-streamed random draw; winner announced publicly; entries close ~18-20 Dec.

Why compliant from day one

- ◆ No-purchase free entry removes consideration — lottery risk gone.
- ◆ Real skill element in the quiz → a contest, not pure chance.
- ◆ “Win a chance” copy — never “100% free” — CCPA / ASCI safe.
- ◆ Winner's ~30% statutory TDS disclosed upfront; paid before delivery.
- ◆ TN / WB excluded (“void where prohibited”); Maharashtra rules reviewed.
- ◆ Written lawyer + CA opinions before entries open (gate file 03).

Unit economics of a qualifying order

Component (minimum basket)	Metal @ Sep-26	Sale (ex-GST)	Gross profit
Gold jewellery — 3 g min (22K, +10% making)	Rs 42,750	Rs 47,025	8% → Rs 3,762
Silver jewellery — 100 g min (999, +15% making)	Rs 23,500	Rs 27,025	4% → Rs 1,081
Minimum qualifying basket	—	Rs 74,050	Rs 4,843 · 6.5%
Customer pays incl. ~3% GST	—	~Rs 76,400	—

Rates: 22K gold Rs 14,250/g · silver Rs 235/g (8–9 Sep 2026). Making-charge assumptions are typical; average orders run Rs 90k–1L+ as buyers add gold weight — raising profit per order.

AVERAGE ORDER ~ Rs 1,00,000

≈ Rs 6,800 profit

~6.8% blended — upsell via chatbot + festive offers lifts the basket; gold-heavy baskets carry the 8% margin.

MARGIN PHILOSOPHY

Margin in making, not metal

Metal passes at market + 3% GST; profit comes from the making-charge spread on gold (8%) and silver (4%) — agreed per-vendor splits in writing.

How many customers sustain the marketing & bullion budget?

Fixed campaign cash spend: **Rs 9L marketing + Rs 15L prize + Rs 3L ops/legal ≈ Rs 27L** (prize TDS is pass-through — the winner pays). At **Rs 4,843** profit per minimum basket:

Cover marketing alone

≈ 190 orders

Rs 9L ÷ Rs 4,843 → GMV ≈ Rs 1.4 Cr (min basket)

Cover marketing + prize

≈ 500 orders

Rs 24L ÷ Rs 4,843 → GMV ≈ Rs 3.7 Cr

Cover full Rs 27L burn

≈ 560 orders

GMV ≈ Rs 4.1–4.3 Cr → +5% leakage: ≈ 590 orders

Scenario	Avg order	Profit / order	Rs 9L mkt	Rs 24L mkt + prize	Rs 27L total
Minimum basket	Rs 74,050	Rs 4,843	186	496	558
Average basket (target)	Rs 1,00,000	Rs 6,800	132	353	397

Honest framing for a launch: 400–600 qualifying buyers in 8–10 weeks of festive demand is demanding but reachable at Rs 9L of Instagram reach (1–3M impressions → 2–4% CTR → 20–60k visits → 1–2% qualify). Below that, the prize still buys a nationwide launch at ~Rs 300–600 per entry / lead.

Three scenarios · campaign window

Scenario	Qualifying orders	Qualifying GMV	Basket profit	+ Non-qual. & repeat	Vs Rs 33.2L fixed burn*
Conservative	300	Rs 2.7 Cr	Rs 17.8L	Rs 8L	≈ -Rs 7L
Base	500	Rs 4.5 Cr	Rs 29.7L	Rs 13.5L	≈ +Rs 10L
Stretch	800	Rs 7.2 Cr	Rs 47.5L	Rs 21.6L	≈ +Rs 36L

*Fixed burn = Rs 9L marketing + Rs 15L prize + Rs 9.2L ops/compliance in-window (prize & ads expensed; inventory excluded — it is an asset). Surpluses exclude gold appreciation on held stock and 12-month customer LTV (Rs 60k-1.2L per buyer).

Capital at true risk

≈ Rs 24-28L

prize bought early (hedged), ads, ops; inventory owned and liquid

Cash at risk if low uptake

≈ -Rs 7-10L

conservative deficit on burn; inventory + prize re-saleable

Upside levers

5× stretch

wedding funnel, repeat cohort, gold appreciation, vendor net-terms float

Use of funds — every rupee accounted

Head	Amount	Share	Detail
Marketing & content	Rs 9.0L	6.0%	Instagram ads, boosted Lives, influencer (#ad), content — phased to 31 Dec
Giveaway — prize logistics	Rs 15.8L	10.5%	100 g 24K certified biscuit Rs 15.0L + insurance/custody 0.3L + CA draw & ceremony 0.5L
Platform ops & compliance	Rs 9.2L	6.1%	legal + CA written opinions, T&C;, DPDP, grievance officer, quiz / free-entry / draw tooling, chatbot, CS, load & queue
Inventory & supply-chain working capital	Rs 116.0L	77.3%	gold & silver stock + manufacturer advances (15/30/45-day); rotates ~3× in the window
Total	Rs 1,50,00,000	100%	

Why 77% sits in inventory: it is the engine AND the safety net. The stock generates the qualifying sales, then remains a saleable asset — the campaign cannot “burn” it. Peak stock ~Rs 1.0–1.2 Cr supports ~Rs 4–5 Cr GMV at ~3× festive turnover.

Cash cycle & inventory engine

1 • Customer pays

Upfront

digital payment incl. ~3% GST — full value in

2 • Vendor paid later

15/30/45 days

templated net-terms with the 200 Mumbai makers; float funds next stock

3 • Dispatch ≤ 7 days

Insured

BIS/HUID-verified, invoice-weighted; festive CS on 48h / 30-day SLA

4 • Gold hedge

Buy early

prize biscuit purchased ≤ 30 Sep; held stock rides festive appreciation

Revenue streams

- ◆ Making-charge margin on gold (8%) and silver (4%) across the catalogue.
- ◆ Vendor markup splits (written per maker) on the 400,000-design catalogue.
- ◆ Repeat & wedding-season revenue from a 25k-100k consented cohort.
- ◆ Consolation funnel — making-charge offers to non-winning entrants (post-draw profit).

Added value beyond the brief

- ◆ 5% cancellation / refund leakage buffer built into every target.
- ◆ Prize bought early + insured → gold-price risk managed.
- ◆ Prize TDS is pass-through (winner pays ~31.2%) — no hidden cost.
- ◆ GST / ITC: written CA model for the gifted biscuit before purchase.
- ◆ Fraud controls: OTP, entry caps, order-weight re-verification.

Prize, tax & GST — engineered, not improvised

Winner's tax

30% + cess $\approx$ 31.2%

IT Act 2025 §128 (was §115BB); TDS §393(3) Sl. 1. In-kind $\Rightarrow$ winner pays TDS ($\sim$ Rs 4.7L) before delivery; Form 16A / 26AS; PAN mandatory.

GST on sales

3%

gold & silver value + 5% on making in practice; HSN invoicing; e-invoice at threshold; e-way bill carve-outs; GSTIN live pre-sale.

Gift vs supply

ITC reversal

the free biscuit $\Rightarrow$ input-credit reversal (§17(5)(h)); written CA rupee model before purchase; booked as marketing expense.

PML / reporting

Cash > Rs 10L

precious-metals dealer = FIU-IND reporting entity; digital model mostly outside cash CTRs; STR discipline + vendor KYC.

Governance

Board resolution

offer, prize, Rs 9L budget, Rs 1.5 Cr deployment, custodian and draw authority; financier loan documented (§73).

Value discipline

Rs 15L = current-market

never a fixed rupee promise; budget Rs 15–17L; TDS on draw-date FMV; refiner certificate + serial + invoice.

Marketing: spend where festive gold demand peaks

Phase	Window	Rs	Focus
Announcement + pre-entry	12 Sep – early Oct	0.8L	compliant Live launch; waitlist; catalogue teasers; pixel building
Launch + Diwali burst	early Oct – 15 Nov	3.4L	entries open; Dhanteras 6 Nov · Diwali 8 Nov · Bhai Dooj 10-11 Nov peak
Wedding + Christmas	16 Nov – 15 Dec	1.8L	wedding gifting; entry reminders; optional interim Live
Finale	16 – 31 Dec	2.6L	entries close ~18-20 Dec; countdown; 31 Dec live draw; post-draw amplification
Buffer / experiments	rolling	0.4L	creative & influencer (#ad) testing

Funnel targets

1-3M reach

→ 20-60k visits (2-4% CTR) → 15-25% entries → 1-2% qualifying

Cost discipline

CAC ≤ Rs 12-15k

per qualifying buyer; Rs 100-300 per lead — never “Rs 300 @ 50,000 customers”

Creative rules

Trust first

show hallmark / HUID, the sealed certified biscuit, maker workshops, the audited draw

Timeline to the 31 December draw

#	Date	Milestone	Gate
1	Now – 11 Sep	Lawyer + CA engaged; written opinions; GST application; board resolution; prize vendor; insurer	G1-G3
2	12 Sep	Compliant announcement Live + free pre-registration (no entries, no purchase linkage)	G7 copy
3	13 – 30 Sep	T&C;, official rules, privacy (DPDP), grievance officer, vendor agreements; prize purchased ≤ 30 Sep	G4-G5
4	Early Oct	Entries open — free route + purchaser perk; quiz live; ledger + fraud controls	G6
5	Oct – 15 Dec	Phased Rs 9L marketing; Dhanteras / Diwali / Bhai Dooj peak; weekly compliance check-ins	—
6	16 – 20 Dec	Entries close (recommend 18–20 Dec, 12:00 IST); ledger freeze + SHA-256; audit prep; finalist PAN / KYC	—
7	31 Dec	CA-witnessed live draw — winner announced	—
8	Jan 2027	TDS deposit + Form 16A; insured handover; winner PR; campaign & MIS report by 31 Jan	—

Superseded dates: 12 Oct 2026 → optional interim progress Live only (never a “shortlist”). Bhai Dooj 11 Nov → festive marketing spike (actual 10–11 Nov). Neither is a prize event.

Risk & mitigation — the answer already built

Risk	L	I	Mitigation in place
Read as lottery / unfair practice	Med	High	free-entry route + skill quiz + written lawyer opinion before entries open
CCPA “100% free” action	Low	High	“win a chance” copy; conditions prominent; ASCI / CCPA review of every creative
Gold price up by Dec	Med-High	Med	prize bought ≤ 30 Sep; inventory hedges naturally; budgeted Rs 15-17L range
Vendor fake / under-carat gold	Med	High	hallmark / HUID warranty + indemnity in agreements; batch QC; seller-of-record QA
Site crash on viral day	Med	Med	load test + queue / rate-limiter before peak spend
Draw perceived rigged	Low	High	CA witness; SHA-256 freeze; unedited recording kept 8 years; live stream
Winner bought nothing (free entrant)	Med	Low	disclosed odds; purchaser perks carry the funnel; consolation offers drive profit
Low uptake → burn deficit	Med	Med	max downside ≈ Rs 7-10L; inventory is an asset; prize re-saleable

Fuller legal / tax / product risk analysis with statute references and effective dates is in research files 01-09 of the pack.

Why other jewellers are NOT running this scheme

◆ **They can't do it legally.** A purchase-only lucky draw is a lottery — most jewellers run these blind, without a free-entry route or lawyer-drafted T&C.; We engineered the compliance first; a copycat inherits the CCPA / lottery exposure.

◆ **They won't risk margin.** A Rs 15L prize needs ~500-600 qualifying buyers on 4-8% margins — 6-10 months of profit behind one promotion.

◆ **They lack the inventory to absorb it.** A ~Rs 1L basket demands deep gold AND silver stock; most shops hold slow Rs 30-60L stock, not a rotating Rs 1.16 Cr engine.

◆ **Traffic wouldn't convert.** Without a 400,000-design catalogue + AI concierge, a giveaway lands on a thin catalogue — a wasted prize.

◆ **No tech stack.** Entry ledger, audited-draw tool, free-entry route, HUID verification, DPDP consent, queue handling — beyond a traditional shop system.

◆ **Cash & liquidity.** Prize + ads + stock upfront (~Rs 1.5 Cr) with a 3.5-month hold before the draw — most jewellers are inventory-cash-tight at exactly this scale.

◆ **Brand-optics fear.** Heritage jewellers see “lucky draw” as cheap and trust-damaging; they quietly prefer plain discounts — leaving the high-attention game open.

◆ **Tax complexity.** §128 / §393(3) TDS on an in-kind prize, ITC reversal, PAN / KYC, notary draws — small firms avoid the paperwork entirely.

◆ **They can't fulfil 200 makers.** Dispatch SLAs, hallmarking, returns and quality under one brand across 200 vendors is an operations machine most don't have.

◆ **Even if they copy it tomorrow** — we hold first-mover data, supplier contracts, the HUID-verified catalogue and the compliance playbook. The moat compounds with every customer we keep.

The investment — Rs 1.5 crore

Deployment (recap)

Head	Amount
Marketing	Rs 9.0L
Prize + logistics	Rs 15.8L
Ops & compliance	Rs 9.2L
Inventory & supply chain	Rs 116.0L
Total	Rs 1.50 Cr

Investor comforts

- ◆ ~77% of the capital sits in owned, liquid inventory — not burned.
- ◆ Prize funded and purchased first; insured; custodied.
- ◆ Legal + CA written opinions gate every public step (files 01-09).
- ◆ Monthly MIS; campaign report by 31 Jan 2027.
- ◆ Financier loan documented under Companies Act deposit rules (§73).

Structure options (with CA / lawyer)

- ◆ **A · Secured loan** — 18% p.a., 12-month bullet; inventory hypothecation + guarantee; prize escrow.
- ◆ **B · Convertible** — convertible note / CCPS at next-round valuation; cap + discount.
- ◆ **C · Equity** — dilution at an agreed valuation (to be negotiated).

Base-case economics (slide 7) support interest + principal from operating surplus within 12 months; downside is cushioned by the inventory asset value and the gold price.

Legal · CA / Tax · Consumer Court

Do's & Don'ts — five pages of what must be done, and what must never be done

Compliance specialists engaged: consumer & advertising lawyer · CA (jewellery retail, GST, income tax) · BIS / metrology / AML

Each page is research-based guidance for your advisors — it is not a substitute for their written opinions.

Legal playbook — what makes it lawful

Governing frame: Lotteries (Regulation) Act 1998 · IPC §294A · Prize Competitions Act 1955 · state prize-scheme laws (TN, WB, Maharashtra) · Consumer Protection Act 2019 §2(47). A purchase-only, pure-chance draw for a Rs 15L prize is a private lottery in law. This is how we make it a lawful contest.

DO — MUST

- ✓ Structure a genuine no-purchase free entry (same quiz, equal odds) — removes “consideration”.
- ✓ Make the quiz a real, scored skill element; winners chosen on a defined, published method.
- ✓ Get a written opinion from a consumer / advertising lawyer on the final mechanic before entries open.
- ✓ Publish lawyer-drafted T&C; before launch: eligibility (18+, India), IST dates, odds, method, tax, re-draw.
- ✓ Exclude TN (Prize Schemes (Prohibition) Act 1979) and WB; review Maharashtra and Rajasthan scope — “void where prohibited”.
- ✓ Buy and earmark the prize before announcing; sell goods at genuine market price (nothing is “paid to enter”).
- ✓ Audit the draw: independent CA / notary witness, SHA-256 frozen ledger, live stream, recording kept 8 years.
- ✓ Label it a “contest / festive reward” — never the word “lottery”.

DON'T — MUST

- ✗ Never run a buy-to-enter random draw (prize + chance + consideration = private lottery; §294A IPC exposure).
- ✗ Don't use a token quiz as a disguise — the skill element must be real, scored and predominant.
- ✗ Never claim “100% free” while a purchase is required, and never fix a guaranteed rupee prize value.
- ✗ Don't let employees, relatives, vendors or agencies (or their families) enter.
- ✗ Never exclude residents' rights silently or bury exclusions only in fine print.
- ✗ Don't delay, withhold or selectively publish results — publish on the same channels used to promote.
- ✗ Never ask the winner to pay courier, processing or handling fees (only statutory TDS may be deducted).
- ✗ Don't use deposit / “chit” / “guaranteed return” language — goods are sold, not funded by pooled money.

CA / tax playbook — do's and don'ts

Income-tax Act 2025 applies from 1 Apr 2026 (the draw is 31 Dec 2026). Prize winnings: ₹128 (was ₹115BB) at a flat 30% + cess $\approx$ 31.2%; TDS: ₹393(3) Table Sl. 1 (was ₹194B). GST on gold / silver: 3% (+5% on making in practice).

DO — MUST

- ✓ Register GSTIN (Rajasthan) and display it on the website before the first sale (E-Commerce Rules).
- ✓ Deduct & deposit TDS on the draw-date fair market value of the biscuit; winner pays before delivery (or gross-up per CA).
- ✓ Collect the winner's PAN before release — a missing PAN raises the TDS rate; issue Form 16A / reflect in 26AS.
- ✓ Get a written CA model for GST / ITC on the free biscuit before purchase (§17(5)(h) reversal) and book it as marketing expense.
- ✓ Invoice correctly: 3% GST on metal, 5% on making (HSN 7113 / 7108 / 7118); e-invoice at threshold; e-way bill carve-outs.
- ✓ Reconcile every vendor GSTIN + invoice (fake-invoice risk); keep the full audit trail 8 years (entries, draw, TDS, prize).
- ✓ As a precious-metals dealer, maintain PMLA / FIU-IND reporting (cash $\geq$ Rs 10L $\rightarrow$ CTR / SFT; STR on suspicion).
- ✓ Document a financier loan under Companies Act deposit rules (§73) so it is never an unauthorised deposit.

DON'T — MUST

- ✗ Never deduct TDS under the wrong provision — §194R (business perquisites) does not apply to a retail winner.
- ✗ Don't hand over the biscuit before TDS deposit and PAN verification — liability stays with the company.
- ✗ Don't claim input credit on the gifted biscuit without the reversal treatment — it is a Rs ~15L item.
- ✗ Don't file GSTRs without matching supplier invoices; never accept cash $\geq$ Rs 10L without CTR / SFT reporting.
- ✗ Don't present TDS as company cost in investor tables without noting it is winner-funded pass-through.
- ✗ Don't ignore cess in the rate: quote $\sim$ 31.2%, not 30%.
- ✗ Don't book customer prepayments as revenue before dispatch / return-window risk is assessed.
- ✗ Don't purchase the prize late and unprotected — buy early (hedge) with insurance and a refiner certificate.

Consumer protection & e-commerce playbook

Framing laws: Consumer Protection Act 2019 (§2(47) unfair trade practices), CCPA Guidelines for Misleading Advertisements 2022, Consumer Protection (E-Commerce) Rules 2020, Legal Metrology Act 2009. Penalties for a misleading ad can reach Rs 10L (Rs 50L on repeat) plus imprisonment.

DO — MUST

- ✓ Display legal name, CIN, registered address, GSTIN, customer care and a named grievance officer (48-hr ack / 30-day redress).
- ✓ Publish clear return / refund / exchange / cancellation rules, delivery timelines and price breakup (metal, making, GST).
- ✓ Word every ad as “win a chance” with material conditions prominent — not only in linked fine print.
- ✓ Honour the promise exactly: 100 g of 24K certified gold, delivered on the announced terms and date.
- ✓ Maintain a documented grievance log and close complaints inside the SLA — it is your defence file.
- ✓ Ensure product truth on every SKU: hallmarked gold (HUID), declared silver purity, invoice weight matches.
- ✓ Keep the draw evidence kit: methodology, witness certificate, recording, published results (8 years).
- ✓ Treat every manufacturer's product as Shivaa's liability to the consumer — enforce vendor warranties / indemnities.

DON'T — MUST

- ✗ Never say “100% free gold” or “worth Rs 15 lakh” as a fixed promise.
- ✗ Don't bury material conditions in T&C; links only — state them in the ad and in the Live itself.
- ✗ Never rig or obscure the draw, and never bias it toward purchasers over free entrants.
- ✗ Don't add hidden charges for the winner — only the statutory TDS may be deducted.
- ✗ Don't ignore a consumer-commission notice or CCPA letter — respond within timelines with your evidence file.
- ✗ Don't collect PAN / phone / quiz data without DPDP notice and consent.
- ✗ Don't publish fake reviews or claim manufacturer goods are “Shivaa-made”.
- ✗ Don't ship non-hallmarked gold jewellery or weights that differ from the invoice — that alone invites complaints.

BIS · metrology · platform · DPDP playbook

BIS hallmarking of gold jewellery (with HUID) is mandatory in notified districts; silver hallmarking is voluntary under IS 2112:2025. A 24K coin / biscuit carries a certified refiner's purity certificate (not a jewellery hallmark). DPDP Rules were notified 13 Nov 2025; full penalty enforcement expected by May 2027 — design for it now.

DO — MUST

- ✓ Hallmark (BIS + HUID) every gold jewellery SKU and declare silver purity (925 / 999) on the invoice and packaging.
- ✓ Buy the 100 g prize from a certified refiner (MMTC-PAMP / Mint type) with certificate, serial number, invoice and insurance.
- ✓ Follow Meta / Instagram promotion rules: business account, official rules, the exact Instagram-release disclaimer, no fake tagging.
- ✓ Mark influencer posts #ad; keep entry records and proof at least 90 days (we retain 8 years).
- ✓ Publish a DPDP privacy policy with notice + consent, retention limits and a grievance contact; sign data-processor agreements for the chatbot / analytics.
- ✓ Disclose the AI assistant and provide human escalation; keep the AI out of winner selection and out of tax / legal promises.
- ✓ Run vendor KYC (PAN + GSTIN) and an AML programme; monitor unusual transactions.
- ✓ Check Legal Metrology declarations and the draft country-of-origin e-commerce filter for imported goods.

DON'T — MUST

- ✗ Never sell gold jewellery without HUID, and never claim “BIS-verified” unless actually checked (the site hands off to BIS Care; label it as user-verifiable).
- ✗ Don't mis-state purity (916 vs 999) or pass 22K as 24K.
- ✗ Don't run the promotion from a personal Instagram account or make tagging / story-sharing the only entry route.
- ✗ Don't use personal data beyond its stated purpose or keep it indefinitely.
- ✗ Don't let the chatbot state hallmark / purity / price facts it cannot verify, or answer as a lawyer / CA.
- ✗ Don't reproduce manufacturers' photos / designs without a licence — Copyright & Designs Act exposure.
- ✗ Don't ignore breach duties: notify without delay and file the detailed report within 72 hours (and CERT-In where applicable).
- ✗ Don't accept unexplained large cash or invoices from unverified suppliers.

Operations, oversight & the launch gate

Nothing public (beyond a compliant announcement) happens until every gate below is signed. This is the same gate register as research file 03 — shown here as the investor-visible control board.

DO — MUST

- ✓ Pass a board resolution authorising the offer, prize, Rs 9L budget and Rs 1.5 Cr deployment, custodian and draw authority.
- ✓ Engage and brief the lawyer + CA before 12 Sep; obtain their written opinions before entries open.
- ✓ Insure the prize and stock; store the biscuit in lockable custody with a 2-person access log.
- ✓ Appoint the grievance officer and nodal contact; publish contacts before the first ad.
- ✓ Soft-test the full flow (purchase → quiz → free entry → simulated draw) before the paid launch.
- ✓ Run load tests and a queue / rate-limiter before peak spend days (Dhanteras / Diwali / finale).
- ✓ Run weekly compliance check-ins through the window: ad wording, grievance log, free-route prominence.
- ✓ Report monthly MIS to the investor: orders, GMV, entries, CAC, complaints, cash — and a full report by 31 Jan 2027.

DON'T — MUST

- ✗ Never open entries or publish the full scheme before the legal and CA opinions are in writing.
- ✗ Don't spend the December marketing reserve early — the finale must be funded.
- ✗ Don't let one person control the draw, the ledger and the prize — segregate duties.
- ✗ Don't quietly deprioritise the free-entry route once purchases flow — equal odds must be maintained.
- ✗ Don't skip the re-draw rule if the winner is invalid or unresponsive — publish it in the T&C.;
- ✗ Don't release the biscuit without PAN, TDS deposit and a signed acknowledgement.
- ✗ Don't delete any records for 8 years (tax, consumer and legal retention).
- ✗ Don't treat advisor feedback as a formality — sign-offs are the product the investor is buying.

Ten boxes that must be ticked before entries open

Gate	What is signed off	Owner	Status
G1	Written legal opinion on the contest structure + state exposure (Rajasthan / TN / WB / Maharashtra)	Lawyer	☐
G2	Written CA note: TDS §128 / §393(3), GST / ITC model for the prize, cash-flow scenarios	CA	☐
G3	GSTIN obtained and live on shivaa.in (no sales before this)	Owner / CA	☐
G4	T&C, official rules and DPDP privacy policy published; grievance officer listed	Lawyer + Dev	☐
G5	100 g biscuit purchased (refiner certificate), insured, custodied	Owner / Ops	☐
G6	Free-entry route + quiz + ledger + audited draw tool tested end-to-end	Dev	☐
G7	All ads / Live copy approved: “win a chance” wording, Meta disclaimer, no “100% free”	Lawyer + Marketing	☐
G8	Vendor agreements signed with first 20–30 makers (hallmark / HUID warranty, IP, SLA)	Ops	☐
G9	Load test + queue passed; CS staffed with 48h / 30-day SLA	Ops	☐
G10	Draw date, witness (CA / notary), re-draw rule and 8-year retention confirmed	All	☐

Rule: the full scheme is public only when G1–G4 and G7 are green. A compliant announcement + free pre-registration on 12 Sep is the only pre-gate public activity.

One prize. One nation. One night.

A lawful, taxed, consumer-safe giveaway engine — announced 12 Sep, drawn live 31 Dec 2026.

Ernate Shine Jewellery Pvt. Ltd. · shivaa.in · CIN U32111RJ2025PTC099173
Investment proposal: Rs 1.5 crore · Thank you.

This deck is planning research — not legal, tax or investment advice. Confirm with your lawyer, CA and advisors before commitment.

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